

Person Filing:_____

Address (if not protected):_____

City, State, Zip Code:_____

Telephone:_____

ATLAS Number:_____

Lawyer's Bar Number:_____

For Clerk's Use Only

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Case Number: _____

(Petitioner/Party A)

DECREE OF DISSOLUTION
OF MARRIAGE (Divorce)
WITHOUT MINOR CHILDREN

(Respondent/Party B)

THE COURT FINDS:

1. This case has come before this Court for a final Decree of Dissolution of Marriage (Divorce) without Minor Children. The Court has taken all testimony needed to enter a final Decree or has determined testimony is not needed to enter the final Decree.
2. This Court has jurisdiction over the parties under the law, and the provisions of the Decree are fair and reasonable under the circumstances.
3. THE COURT FINDS:
 - (a) The marriage of the parties is not a "covenant" marriage.
 - (b) At the time this action was filed, one of the parties lived in Arizona for more than 90 days, or had lived in Arizona, while a member of the United States Armed Forces, for more than 90 days.
 - (c) The provisions of A.R.S. § 25-381.09 relating to Conciliation Court either do not apply or have been met.

- (d) The marriage is irretrievably broken (the marriage is over).
- (e) Where it has the legal power to do so and where it is applicable to the facts of this case, this Court has considered, approved, and made orders relating to the issue of spousal maintenance/support, and the division of property and/or debts.
- ☐ The parties did not acquire any community property or debts during the marriage; OR,
 - ☐ There IS an agreement as to division of community property and debt; all community property and debt is divided pursuant to this Decree.
 - ☐ There is NO agreement as to division of property and/or debt, but all community property and/or debt is divided pursuant to this Decree.
- (f) ☐ Party A, OR
- ☐ Party B
- ☐ Lacks sufficient property, including property apportioned to the spouse, to provide for that spouse's reasonable needs.
 - ☐ Lacks earning ability in the labor market that is adequate to be self-sufficient.
 - ☐ Is the parent of a child whose age or condition is such that the parent should not be required to seek employment outside the home.
 - ☐ Has made a significant financial or other contribution to the education, training, vocational skills, career, or earning ability of the other spouse or has significantly reduced that spouse's income or career opportunities for the benefit of the other spouse.
 - ☐ Had a marriage of long duration and is of an age that may preclude the possibility of gaining employment adequate to be self-sufficient.
- (g) ☐ Party A is not pregnant. OR
- ☐ Party A is pregnant, and Party B ☐ IS OR ☐ IS NOT a parent of the child.
- ☐ Party B is not pregnant. OR
- ☐ Party B is pregnant and Party A ☐ IS OR ☐ IS NOT a parent of the child.

THE COURT ORDERS:

1. The marriage of the parties is dissolved, and the parties are restored to the legal status of single persons.

2. NAMES:

☐ Party A's name is restored to _____. (Put only the last name here.) Party A's date of birth is _____.

☐ Party B's name is restored to _____. (Put only the last name here.) Party B's date of birth is _____.

3. SPOUSAL MAINTENANCE/SUPPORT (ALIMONY):

(a) ☐ Neither party shall pay spousal maintenance/support (alimony) to the other party, (SKIP TO question 4)

OR

(b) ☐ Party A OR ☐ Party B is ordered to pay ☐ Party B, OR ☐ Party A the sum of \$_____ per month spousal maintenance/support beginning the first day of the month after this Decree is signed. Each payment shall be made by the first day of each month thereafter and shall continue until the receiving party is remarried, deceased, or until _____ (date).

☐ This is a deviation from the amount recommended under the Spousal Maintenance Guidelines. The Court finds that this amount is more appropriate or just.

Reason(s) for deviation:

All payments shall be made through the Support Payment Clearinghouse PO Box 52107, Phoenix, Arizona 85072-7107 by an Income Withholding Order, until all required payments have been made under this Decree. All spousal maintenance payments are governed by the applicable federal and state tax laws. It shall terminate upon the death of either party or remarriage of receiving party.

Spousal maintenance modification:

☐ The spousal maintenance award shall be modifiable in accordance with Arizona law,

OR

☐ The spousal maintenance award shall NOT be modifiable for any reason.

☐ Attachment: The required A.R.S. 25-319(b) financial factors and any discretionary adjustment pursuant to the Arizona Spousal Maintenance Guidelines are set forth in the Spousal Maintenance Worksheet and are attached hereto and incorporated herein by reference.

4. PROPERTY, DEBTS, AND TAXES:

- a) ☐ Party A is ordered to pay all debts unknown to Party B.
- ☐ Party B is ordered to pay all debts unknown to Party A.
- ☐ Each party is ordered to pay his/her debts which he/she incurred since the date of the parties' separation on _____ (date).
- b) ☐ Other orders and relief relating to the division of community property and/or debts which are contained in Exhibit A, is attached and incorporated into and made a part of this Decree.
- c) ☐ Each party is assigned his/her separate property and debts as contained in Exhibit A, which is attached and incorporated into and made a part of this Decree.
- d) ☐ This Decree can be used as a transfer of title and can be recorded. Parties shall sign all documents necessary to complete all transfer of title ordered in this Decree, such as motor vehicles, houses, and bank accounts. The parties shall transfer all real and personal property as described in Exhibit A to the other party on or before _____ by 5:00 p.m.

If the party required to transfer the property has not transferred the property to the party entitled to receive the property on or before the date and time listed above, the party entitled to receive the property is entitled upon application to a Writ of Assistance or Writ of Execution to be issued by the Clerk of Superior Court commanding the sheriff to put him or her in possession of the property.

- (e) ☐ For previous calendar years, the parties shall file, subject to IRS Rules and Regulations,
- ☐ Joint federal and state income tax returns, and hold the other harmless from half of all additional income taxes and costs, if any, and each party shall share equally in tax refunds, if any,

OR

☐ Separate federal and state income tax returns.

☐ This calendar year and continuing thereafter, each party shall file separate tax returns.

AND

☐ Each party shall give the other party all necessary documentation to file all tax returns.

5. ENFORCEMENT OF TEMPORARY ORDERS:

All obligations ordered to be paid by the parties in Temporary Orders dated (fill in dates of ALL temporary orders here) _____ shall be satisfied in full or judgment is awarded against the party with the obligation, up to the amount due and owing as of the date of this Decree, together with the highest legal interest allowed by law.

6. FINAL APPEALABLE ORDER. There are no further matters that remain pending before the court and this judgment is a final order under Rule 78(c) of the Arizona Rules of Family Law Procedure.

DONE IN OPEN COURT this _____ day of _____, 20_____.

JUDGE OR COURT COMMISSIONER

If this Decree/Judgment was issued as a "Default," I certify that within three (3) days of receiving this Decree/Judgment, I will mail a copy of this Decree/Judgment to the last known address of the party in default as follows:

Party's Name: _____

Mailing Address: _____

City, State Zip Code: _____

By: _____

EXHIBIT A: PROPERTY AND DEBTS

1. DIVISION OF COMMUNITY PROPERTY: (Be very specific in your description of the property)

- ☐ Award each party the furniture, furnishings, artwork, collectibles, appliances, cookware, and related items of personalty in his/her possession, or
- ☐ The community property is awarded to each party as follows:

2. LIST OF COMMUNITY PROPERTY

AWARD TO:
Party A Party B

- ☐ Household furniture/furnishings. (Be specific.)

_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐

- ☐ Appliances. (Be specific.)

_____	☐	☐
_____	☐	☐
_____	☐	☐
_____	☐	☐

- ☐ DVD/VCR/DVR. (Be specific)

_____	☐	☐
_____	☐	☐

AWARD TO:
Party A Party B

- ☐ TV. (Be specific)

_____	☐	☐
_____	☐	☐

- ☐ Personal Computer. (Be specific)

_____	☐	☐
_____	☐	☐

- ☐ Stereo. (Be specific)

_____	☐	☐
_____	☐	☐

- | | | | |
|--------------------------|-----------------------------|--------------------------|--------------------------|
| ☐ | Motor vehicle_____ | ☐ | ☐ |
| ☐ | Motor vehicle_____ | ☐ | ☐ |
| ☐ | Motor vehicle_____ | ☐ | ☐ |
| ☐ | Cash, bonds of \$_____ | ☐ | ☐ |
| ☐ | Other: _____ | ☐ | ☐ |
| ☐ | Other: _____ | ☐ | ☐ |
| ☐ | Continued on attached list. | | |

3. DIVISION OF RETIREMENT, PENSION, DEFERRED COMPENSATION

(WARNING. You should see a lawyer about your retirement, pension, deferred compensation, 401k plans and/or benefits. If you do not see a lawyer regarding these assets, you risk losing any interest you have in these plans and/or benefits. There are certain documents the plan administrator must have. Only a lawyer can help you prepare these documents.)

- ☐ Award each party his/her interest in any and all retirement benefits, pension plans, or other deferred compensation described as:

OR

- ☐ Each party WAIVES AND GIVES UP his/her interest in any and all retirement benefits, pension plans, or other deferred compensation of the other party.

OR

- ☐ Neither party has a retirement, pension, deferred compensation, 401K Plan and/or benefits.

4. DIVISION OF REAL PROPERTY: Section A is for one piece of property. Section B is for another piece of property. If you own more than two pieces of property, check the box and attach another sheet of paper with the information requested in Sections A and B.

- A. Real property located at (address)_____ and which is legally described as: (You must provide the legal description. The legal description can be found on the deed to the property. If you do not provide the legal description, you may have to come back to court to amend the Decree to include the legal description.)

LEGAL DESCRIPTION: _____

The real property as described above is:

☐ Awarded to ☐ Party A or ☐ Party B as his/her sole and separate property.

OR

☐ Shall be sold and the proceeds divided as follows:

_____ % or \$ _____ to Party A.

_____ % or \$ _____ to Party B.

- B. Real property located at (address) _____
and which is legally described as: (You must provide the legal description. The legal description can be found on the deed to the property. If you do not provide the legal description, you may have to come back to court to amend the Decree to include the legal description.)

LEGAL DESCRIPTION: _____

The real property as described above is:

☐ Awarded to ☐ Party A or ☐ Party B as his/her sole and separate property.

OR

☐ Shall be sold and the proceeds divided as follows:

_____ % or \$ _____ to Party A.

_____ % or \$ _____ to Party B.

- ☐ More than two pieces of property are involved. See attached sheet listing the same information as in Sections A and B.

5. DIVISION OF COMMUNITY DEBTS: (You should see a lawyer about how to divide secured and unsecured debts.)

☐ The community debts shall be divided as follows:

Creditors	Amount Owed	Party A	Party B
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____

☐ Continued on attached list.

6. ☐ Any debts or obligations incurred by either party before the date of separation, that are not identified in the list above or attached, shall be paid by the party who incurred the debt or obligation, and that party shall indemnify and hold the other party harmless from such debts.

7. SEPARATE PROPERTY:

- ☐ The separate property is awarded to each party as follows:

Description	Value	Party A	Party B
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____

- ☐ Continued on attached list.

8. SEPARATE DEBT:

- ☐ The separate debts shall be the responsibility of the person as described below.

Creditors	Amount Owed	Party A	Party B
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____
_____	\$ _____	_____	_____

- ☐ Continued on attached list.

Person Filing:_____

Address (if not protected):_____

City, State, Zip Code:_____

Telephone:_____

Email Address:_____

Lawyer's Bar Number:_____

For Clerk's Use Only

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

In the Marriage of

Case No. _____

Name of Petitioner/Party A

MOTION AND AFFIDAVIT FOR
DEFAULT DECREE WITHOUT
HEARING for:

and

☐ DISSOLUTION OF MARRIAGE
(Divorce)

☐ LEGAL SEPARATION

☐ ANNULMENT

Name of Respondent/Party B

☐ MATERNITY/PATERNITY

☐ ESTABLISH LEGAL DECISION-
MAKING/PARENTING
TIME/CHILD SUPPORT
A.R.F.L.P. 44.1

I am the Petitioner/Party A, and I am asking the Court to enter a Decree of Dissolution of Marriage, Legal Separation, Annulment, or Maternity/Paternity, or an Order establishing legal-decision-making by default without a court hearing.

SECTION A.

I have marked each box in front of the statements below that are true and I understand that if any statement is not true, I cannot get a default decree without a hearing.

☐ I have read this Motion and Affidavit for Default Decree without a Hearing and to the best of my knowledge everything I have said is true.

☐ I have paid the filing and service fees, or the filing and service fees were waived or deferred. A copy of the receipt showing payment or a copy of the Order showing that the fees were waived or deferred is attached.

- ☐ To the best of my knowledge, both Party A and Party B are competent and sane at this time (even if “legal incompetence” or “insanity” at the time of the marriage is listed as a ground for an annulment).
- ☐ At least 60 days have passed since the other Party (Respondent) was served with the dissolution or legal separation papers, OR my case is for annulment or to establish maternity/paternity and/or legal decision-making/parenting time/child support and there is no 60-day waiting period.
- ☐ Service was not done by publication.
- ☐ Party B has not made an appearance in this matter or filed a Response. I filed the Application and Affidavit for Default, and Default has been entered against the other Party.
- ☐ At the time this action was filed, Party A or Party B was domiciled in Arizona or was stationed in Arizona while a member of the United States Armed Forces. If this is an action for dissolution of marriage (divorce) or annulment, Party A or Party B was domiciled or stationed in Arizona for more than 90 days, at the time the Petition was filed.
- ☐ My case does not involve a member of the military waiving service OR I have submitted a notarized Service Members Civil Relief Act Waiver completed by the other party.

SECTION B.

I am requesting Judgment of DISSOLUTION, LEGAL SEPARATION, or ANNULMENT.

- ☐ NO - If NO, skip to Section C.
- ☐ YES - If YES, answer each question below.

☐ Conciliation Services provisions have been met since the filing of the Petition, or the provisions do not apply. This must be true to proceed. (A.R.S. § 25-381.09).

Covenant Marriage: Our marriage ☐ IS or ☐ IS NOT a covenant marriage.

Pregnancy: ☐ Neither party ☐ Party A ☐ Party B is pregnant with a child common to the parties.

Choose only one that applies:

- ☐ If seeking divorce, the marriage is irretrievably broken.
- ☐ If seeking legal separation, the parties desire to live separate and apart.
- ☐ If seeking annulment, a condition exists which renders the marriage void or voidable.

Spousal Maintenance: (choose only one)

- ☐ Party A or Party B has made a claim for spousal maintenance/support, and Default Information for Spousal Maintenance form and the Spousal Maintenance Worksheet are attached to this Motion and Affidavit.
- ☐ Party A or Party B has NOT made a claim for spousal maintenance/support, and the claim is deemed waived by both parties.

Property and Debt: (choose all that apply)

- ☐ There was no property or debt obtained during the marriage.
- ☐ Does not apply because (explain): _____

- ☐ All of the allegations, including those concerning property and debts listed in the Petition, were true at the time filed and remain true as of the date of the filing of this motion and affidavit, OR any changes are explained below:

- ☐ I attached a list of all community property and debt (obtained or incurred during the marriage), including personal property, motor vehicles, bank accounts, retirement assets, life insurance, and real property, including the value and the party to whom the property or debt is to be awarded. The attached list also includes any requests for the award of sole and separate property and debt.
- ☐ Everything in the Petition for Dissolution of Marriage, Legal Separation, or for Annulment, concerning who gets the property and who pays the bills/debts is fair and reasonable.
- ☐ I have requested reasonable attorney fees and support for this request is attached to this Motion and Affidavit.
- ☐ Same as Petition: The requests in this form and relief to be awarded in the Decree are the same as the relief I requested in the underlying Petition, OR if the relief to be awarded is different, it has been approved by both parties, as reflected in a notarized statement from the other party or a Decree containing the notarized signatures of both parties. This must be true to proceed.

SECTION C.

I am requesting a Judgment of MATERNITY or PATERNITY and/or an Order for LEGAL DECISION-MAKING/PARENTING TIME/CHILD SUPPORT.

☐ NO - If NO, skip to Section D.

☐ YES - If YES, answer each question below.

☐ The name and date of birth of each child is:

Name: _____

Date of Birth: _____

Name: _____

Date of Birth: _____

Name: _____

Date of Birth: _____

Name: _____

Date of Birth: _____

Name: _____

Date of Birth: _____

☐ The factual basis for the finding of maternity/paternity is: _____

☐ The child(ren) live with: _____

☐ Length of Residence: The child has lived in Arizona for at least six (6) months before the filing of the Petition or is less than six (6) months old and has lived in Arizona since birth.

☐ There are no proceedings involving the child that are pending in another jurisdiction.

OR

☐ There are other proceedings involving the child that are pending in another jurisdiction and I have listed the court name(s) and case number(s) below:

Court Name(s) _____

Case Number(s) _____

☐ There are no proceedings involving the child that are pending in another court. OR

☐ There are other proceedings involving the child that are pending in other courts and I have listed the court name(s) and case number(s) below:

Court Name(s) _____

Case Number(s) _____

State of Arizona Request:

- ☐ Does not apply. OR
- ☐ The State of Arizona has requested the default judgment of paternity. The factual basis for the finding of paternity is described above.

Child Support:

- ☐ I have attached the required Child Support Worksheet. Child Support is based on the following:
- ☐ The Arizona Child Support Guidelines OR
- ☐ A deviation from the Arizona Child Support Guidelines because: _____
- _____
- _____
- ☐ Other: _____
- _____
- _____
- ☐ The basis for determining the gross income of the defaulting party is: _____
- _____
- _____

SECTION D. (Check all that apply.)

- ☐ Attorney Fees: I have attached an itemized bill for a reasonable amount of attorney fees to support this request.
- ☐ Money Judgment(s): I have attached the calculations to establish the sum of requested money to support this request.
- ☐ Other requested relief. I have attached the following document, to establish the facts supporting the request: _____
- _____
- _____

This signature page belongs to the form titled “Motion and Affidavit for Default Decree without Hearing” and cannot be used with any other documents.

OATH OR AFFIRMATION AND VERIFICATION

I swear or affirm that the information on this document is true and correct under penalty of perjury.

Signature

Date

STATE OF _____

COUNTY OF _____

Subscribed and sworn to or affirmed before me this: _____ by
(Date)

_____.

(Notarial Officer’s Stamp or Seal)

Notarial Officer